

23CV-04368

Tony Borba, et al. vs County of Merced, et al.

Motion to Transfer

The Department of Fish and Wildlife's motion to transfer pursuant to Code of Civil Procedure section 394 is DENIED.

Code of Civil Procedure section 394 specifically excludes the State of California and its agencies from the code section. (Code Civ. Proc. § 394, subd. (b).) The Court is not aware of any authority, and none is provided, that supports the assertion CDFW may move to transfer a lawsuit initiated by a local government entity to another county pursuant to Code of Civil Procedure section 394.

Further, in the context of damages as we have here, when an action is commenced by a local government entity, Government Code section 955.3 applies. "Notwithstanding any provision of law, when a city, county, or city and county, or local agency is a plaintiff in an action or proceeding against the State of California, the action may be tried in any city or county, or city and county, where the city, county, or city and county, or local agency is situated." (Gov. Code § 955.3.) Thus, transfer may only be ordered in accordance with Code of Civil Procedure section 397.

24CV-05064

Heriberto Martinez vs Angel Anaya, et al.

Motion to Be Relieved as Counsel

The unopposed motion by attorney Kimberly G. Flores and the law firm of Berliner Cohen LLP, to be relieved as counsel for plaintiff Heriberto Martinez, AKA Eddie Martinez is GRANTED, effective upon the filing of a proof of service of the signed order on the client.

The Court will sign the order lodged with the court on April 15, 2026.

25CV-03246

People vs \$160,625.00 Currency

Status Conference

Appearance required.

25CV-04604

Alma Ramos vs Brandon Ellison

Order to Show Cause Re: Sanctions

Appearance required. Appear to show cause why sanctions should not be issued for Plaintiff's counsel's failure to appear at the case management conference on April 20, 2026. Notice of this hearing was sent by the clerk's office on April 30, 2026. No declaration has been filed by counsel in advance of the hearing. No proof of service of the summons and complaint on the defendant has been filed.

Case Management Conference

Appearance required.

25CV-04984

Russel Daniels vs P&G Towing, et al.

Order to Show Cause Re: Sanctions

Appearance required. Appear to show cause why sanctions should not be issued for Plaintiff's counsel's failure to appear at the case management conference on April 20, 2026. Notice of this hearing was sent by the clerk's office on April 30, 2026. No declaration has been filed by counsel in advance of the hearing. No proof of service of the summons and complaint on the defendant has been filed.

Case Management Conference

Appearance required.

25CV-05374

Oscar Garcia vs Yosemite Valley Beef Packing Company, Inc.

Motion to Compel Defendant Yosemite Valley Beef Packing Company, Inc.'s Further Responses to Form Interrogatories - General (Set One) And Special Interrogatories (Set One); Request for Monetary Sanctions in the Amount Of \$5,410.00

The request to compel further responses to Form Interrogatories, Set One, and Special Interrogatories, Set One, is DENIED.

As to the Form Interrogatories, Set One, the standard definition of "INCIDENT" as provided by Judicial Form DISC-001, Sec. 4. Definitions, subdivision (a)(1) is insufficient in this instance rendering the requests vague and ambiguous. As there appears to be multiple actions by Defendant at issue, the use of a special definition may have been more appropriate as the action appear to arise from a course of conduct or series of events occurring over a period of time. (See Judicial Form DISC-001, Sec. 2, subd. (c).)

The objections that the term "INCIDENT" is vague and ambiguous are SUSTAINED. The objections as to compound and overbroad are OVERRULED. The objections as to information being withheld on a claim of privilege are OVERRULED WITHOUT PREJUDICE as no information was provided and the objections based on privilege are not applicable at this time. The objections as to lacks foundation are SUSTAINED due to the definition of "INCIDENT" being vague and ambiguous.

As to Special Interrogatories, Set One, No. 5, the response is substantially code-compliant. Although Defendant objected, they did respond that after a reasonable attempt to obtain the information they are unable to respond at this time. The Court cannot force Defendant to respond with information they do not have.